

7	30-2025-01495141 Doan vs. Secure Guard Security Services, Inc.	The hearing on plaintiff's motion to approve a \$27,500 PAGA settlement is continued to October 12, 2026 at 1:30 p.m. in Department CX103. Plaintiff is ordered to file responsive papers no later than 16 days prior to the hearing. Plaintiff has moved the court to approve a \$27,500 PAGA settlement. On February 9, 2026, the court continued the hearing for several reasons, including plaintiff's failure to provide the settlement agreement and the LWDA notice letter. ROA 68. The court also ordered that, even assuming plaintiff had alleged a PAGA claim solely in his individual capacity, which contradicts the allegations in the complaint, plaintiff must provide authority that a representative PAGA action can be maintained solely in an individual capacity. <i>Id.</i> Plaintiff has failed to file any responsive papers. Accordingly, the court also sets an OSC re: monetary sanctions against plaintiff's counsel for the same date and time due to the failure to file a response as ordered. Any response to the OSC must be filed no later than 16 days prior to the hearing. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
8	30-2018-01015248 Springs vs. SBM Site Services, LLC	Defendant SBM Site Services, LLC's ("Defendant") Motion for the Court to Reinstate Its Order Compelling Arbitration is DENIED. The order compelling arbitration remains vacated under CCP § 1281.98 and the matter will proceed in Superior Court. The court GRANTS Defendant's requests for judicial notice of the court's January 31, 2024 Order Granting Plaintiff's Motion to Vacate Order Compelling Arbitration, and the October 23, 2025 Opinion of the Fourth Appellate District, Third Division, in the Court of Appeal, Fourth Appellate District, Case No. G063924. (Cal. Evid. Code § 452(d).) On January 27, 2023, Judge Sherman granted Defendant's Motion to Compel arbitration as to Plaintiff Brian Springs' ("Plaintiff") individual PAGA claims, but denied as to Plaintiff's representative PAGA claims. (ROA 206.) On January 26, 2024, after Defendant failed to timely pay an arbitration fee to JAMS, Judge Sherman granted Plaintiff's motion to vacate the order compelling arbitration, as the law at